

26NWCV00804 26NWCV00804

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-13

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CP%2C08%2F13%2F2026

Source SHA-256: 9ef075ec4c91cae8f22e1da247a05807f6cd349bd1c29e1b04d1218794c14fa7

Case Number: 26NWCV00804 Hearing Date: August 13, 2026 Dept: P

Simin, LLC v. Haus.Me, Inc.,

26NWCV00804

This breach of lease action was filed on March 4, 2026. Plaintiff Simin, LLC (Plaintiff) now applies ex parte for the following orders concerning a prefabricated mobile structure/container/POD (the Pod) located at 12906 Telegraph Road, Santa Fe Springs, California (Subject Premises):

1. Immediate Verified Election and Ownership Disclosure. An order requiring Defendant Haus.me, Inc. ("Haus"), within two court days, to state under penalty of perjury whether it claims the POD; identify the legal and beneficial owner; disclose all serial, identification, HCD/HUD, registration, title, lien, customer, lessor, and secured-party information; and elect either to relinquish and transfer the POD or to remove it.
2. Order Shortening Time and OSC Re Abandonment and Disposition. An order setting an Order to Show Cause within seven (7) to ten (10) calendar days why, as between the parties and subject to any disclosed third-party rights, the POD should not be deemed abandoned and Plaintiff authorized to remove, transfer, donate to a willing governmental or charitable recipient, including the City of Santa Fe Springs if it agrees to accept it, sell, salvage, recycle, or otherwise dispose of it.
3. Alternative Mandatory Preliminary Injunction. If Haus claims the POD, an order requiring Haus to remove it within ten (10) calendar days, or another expedited period not exceeding fourteen (14) days, through an appropriately licensed, bonded, and insured specialty mover; obtain all permits; coordinate supervised access; and restore the affected parking area.
4. Relief Upon Noncompliance. If Haus fails to make the verified election, fails to appear at the OSC, disclaims the POD, or fails to remove it by the Court-ordered deadline, an order authorizing Plaintiff to document and lawfully dispose of the POD; enjoining interference; and reserving Plaintiff's right to recover reasonable moving, permitting, transport, storage, restoration, code-compliance, and enforcement costs.
5. Undertaking and Further Relief. An undertaking in the amount set by the Court under Code of Civil Procedure section 529 and such other relief as is just and necessary to preserve the Court's jurisdiction and abate the ongoing condition.

Plaintiff states that it owns the Subject Premises and Defendant was its commercial tenant. (Dardashti Decl., ¶ 2.) In July of 2025, Defendant vacated the Subject Premises and left behind multiple prefabricated structures including the Pod, which is a mini-home or mobile structure. (Dardashti Decl., ¶ 3.) On August 15, 2025, "Plaintiff served Haus with a Notice of Belief of Abandonment concerning the Premises and termination of the tenancy. Haus did not resume possession of the Premises

and did not remove the remaining POD.” (Dardashti Decl., ¶ 6.) “On or about July 8, 2026, Plaintiff received a Notice of Violation from the City of Santa Fe Springs, Case No. 26-000402. The City identified Plaintiff as the property owner and legally responsible party, found that the POD reduces the number of required parking spaces, identified the unpermitted POD as a prohibited public nuisance, and directed Plaintiff to remove it and restore the required parking.” (Dardashti Decl., ¶ 8.) Plaintiff states that “[a]bsent prompt relief, Plaintiff will remain exposed to municipal enforcement and loss of required parking and must either incur significant moving and indefinite storage expenses or risk claims arising from unilateral disposition of a structure whose title records are controlled by Haus. Plaintiff also continues to face interference with the use and operation of the Premises.” (Dardashti Decl., ¶ 14.)

The Court finds that, based on the evidence provided, Plaintiff meets the requirements under Code of Civil Procedure section 527 to justify granting the orders requested here to address the Pod. (See *Landmark Holding Group, Inc. v. Superior Court* (1987) 193 Cal.App.3d 525, 528 [“The ex parte hearing concerning a TRO is no more than a review of the conflicting contentions to determine whether there is a sufficiency of evidence to support the issuance of an interlocutory order to keep the subject of litigation in status quo pending a full hearing to determine whether the applicant is entitled to a preliminary injunction.”] (internal citations omitted).)

The Court sets an OSC re: Why the Pod should not be deemed abandoned for Thursday, September 3, 2026 at 9:30 AM in Dept. P. Opposition is due by August 21, 2026 and reply is due by August 28, 2026. Any verified election prior to the OSC is due on the same date the opposition is due.

Moving party to give notice.